

1. 23CV01923 Greenberg, Stuart et al v. Jacques, Michael et al

EVENT: Plaintiff's Demurrer and Motion to Strike Portions of Defendants Michael Jacques' and Alpha Omega Services Inc.'s Cross-Complaint and First Amended Cross Complaint

The reply indicates an opposition was late filed. However, there is no opposition in the Court's file. The hearing is continued to June 17, 2026 at 9:00am. Defense counsel is ordered to file the opposition that was previously served on Plaintiff's counsel no later than May 28, 2026. Additionally, the reply and supplemental declaration of Plaintiff's counsel noted there was a discrepancy concerning a request for judicial notice accompanying Defendant's opposition, and that the correct request for judicial notice was not served on Plaintiff's counsel until May 18, 2026.

To the extent Plaintiff's counsel was deprived of a meaningful opportunity to respond to the request for judicial notice, Plaintiff may file a 3 page supplemental brief on that particular issue if they so desire no later than June 3, 2026.

Plaintiff's objection to the late served (and not filed) opposition is noted.

2. 23CV02709 Beacon Funding Corp v. Any Capital Recovery Inc

EVENT: OEX (Lerron Payne)

The Court will swear in the witness.

3-4. **24CV01768 Sprague, Robert Eugene v. Garnett, Pamela Ann**

EVENT: (1) Defendant's Motion for Summary Judgment (Continued from 4/29/26)

(2) Case Management Conference

Defendant's Motion for Summary Judgment is GRANTED.

Preliminarily, the opposition includes a declaration from Plaintiff as well as statements from witnesses Austina Fillion, Luke Searle Hooper, and Denice Helen. The evidence attempts to portray Plaintiff as someone who is careless, leaving her keys accessible to people who come and go on her property. The evidence suggests that there were many less than reputable people frequenting her property. Plaintiff's declaration states that he personally observed Plaintiff loaning her vehicle to Jorge Contreras on occasion.

Defendant objects to the admissibility of some of this evidence on various grounds. CCP 437c(q) only requires the Court to rule on objections to evidence that is material to the disposition of the motion. As discussed herein, even if the Court credits all evidence proffered in the opposition, the evidence does not create a triable issue of fact on the prima facie elements that are the subject of this motion. As a result, the Court declines ruling on the evidentiary objections.

CACI 724 Negligent Entrustment of Motor Vehicle

1. That [name of driver] was negligent in operating the vehicle;
2. That [name of defendant] [owned the vehicle operated by [name of driver]/had possession of the vehicle operated by [name of driver] with the owner's permission];
3. That [name of defendant] knew, or should have known, that [name of driver] was incompetent or unfit to drive the vehicle;
4. That [name of defendant] permitted [name of driver] to drive the vehicle; and
5. That [name of driver]'s incompetence or unfitness to drive was a substantial factor in causing harm to [name of plaintiff].

[Emphasis Added]

No Triable Issue of Fact Exists on Either Element nos. 3 or 4

The word "driver" is highlighted because it is especially relevant in this case. The element requires that defendant permitted the driver to drive the vehicle. It is undisputed that Joshua Payan was the driver of the vehicle at the time of the accident. (UMF 2)